BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SWIFT TRANSPORTATION CO. OF ARIZONA LLC, a Delaware limited liability company, d/b/a SWIFT TRANSPORTATION,** Defendant.	Case No. _____ **COMPLAINT FOR DAMAGES** (1) Cal. Penal Code section 290.46(j); (2) ICRAA, Cal. Civ. Code sections 1786.40, 1786.50; (3) UCL, Cal. Bus. & Prof. Code section 17200 *[Jury Trial Demanded]*

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, alleges against Defendant SWIFT TRANSPORTATION CO. OF ARIZONA LLC ('Swift') as follows:

INTRODUCTION

1. In September 2023, Plaintiff applied to Swift for a Class A Driver position. On September 26, 2023, Swift sent a password-protected pre-adverse packet. The National Sex Offender Public Website component of that packet remained 'Processing' on every snapshot furnished to Plaintiff. On October 5, 2023, Swift sent a post-adverse letter stating that it had decided not to employ him based in whole or in part on consumer reports from Asurint, Tenstreet, DriverIQ, FMCSA-DOT, and Equifax Work Number.

2. The September 26 packet has been decrypted. Plaintiff alleges its adjudication results as known facts. He does not republish Social Security, date-of-birth, CDL, or telephone identifiers from that packet. National criminal without a sex-offender component returned Clear. Federal criminal returned Clear. Completed county criminal searches returned Clear. NSOPW remained Processing. The furnished packet contains neither a completed NSOPW hit nor a completed NSOPW no-record, and it does not state 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' FMCSA Clearinghouse returned Driver Not Prohibited.

3. What the packet does contain -- a Class A commercial driver's license, an April 22, 2022 improper-lane moving violation with zero points, PSP inspection history, and a CDLIS license-identity match -- is not information disclosed pursuant to Penal Code section 290.46. Those components do not themselves explain a registry-based denial.

4. Plaintiff alleges, on information and belief and as an ultimate fact, that the in-process NSOPW component was drawing California Megan's Law website / California Department of Justice registry data concerning Plaintiff, and that Swift used that preliminary output, in whole or in part, in the October 5, 2023 decision. NSOPW is not automatically information disclosed pursuant to Penal Code section 290.46. The printed snapshots do not contain a completed hit or the words 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' The vendor adjudication log, any later NSOPW return, and the decision-maker communications are exclusively in Defendants' possession.

5. Federal motor-carrier screening does not swallow this claim. The Clearinghouse and Pre-Employment Screening Program concern drug-and-alcohol violations and crash or inspection history. They are not Penal Code section 290.46 disclosures. An employer that may lawfully obtain ordinary safety records is not thereby authorized to use Megan's Law website information for employment. Penal Code section 290.46(j)(3) says so.

6. This complaint does not plead the Fair Credit Reporting Act as a count. Swift sent FCRA-captioned pre-adverse and post-adverse letters in 2023. The two-year FCRA discovery clock from those letters would have closed in 2025. The position is a Class A commercial-driver assignment. Subject-matter jurisdiction is diversity and supplemental jurisdiction, not a time-barred FCRA claim. Plaintiff does not presently plead 15 U.S.C. section 1681b(b)(3)(A) or the DOT-driver notice provisions. He reserves amendment if production shows a timely FCRA claim that those letters did not cure.

7. Plaintiff does not name Knight-Swift Transportation Holdings, Inc., merely as parent. He does not presently name Asurint, Tenstreet, DriverIQ / Cisive, or Equifax as defendants. Robin Kaufman and Matt Hutto are witnesses. This complaint is unverified.

JURISDICTION AND VENUE

8. This Court has original subject-matter jurisdiction under 28 U.S.C. section 1332(a)(1) because this is a civil action between citizens of different States and the amount in controversy exceeds $75,000, exclusive of interest and costs.

9. Plaintiff is a citizen of California. He resides in Stockton, San Joaquin County, California, and is domiciled in California.

10. Defendant SWIFT TRANSPORTATION CO. OF ARIZONA LLC is a Delaware limited liability company. The California Secretary of State records it as a foreign Delaware limited liability company, entity 201014710033. A public SEC Exhibit 21.1 of Knight-Swift Transportation Holdings, Inc., lists Swift Transportation Co. of Arizona, LLC as a Delaware limited-liability-company subsidiary. That listing is not a complete membership roll, and it is not a pleading that Knight-Swift is a defendant or a member. Swift's own October 5, 2023 letter

uses 2200 South 75th Avenue, Phoenix, Arizona. The citizenship of a limited liability company is the citizenship of each of its members. Plaintiff does not invent those members. On information and belief, no member of Swift is a citizen of California. If Swift contests complete diversity, it can disclose its members under Federal Rule of Civil Procedure 7.1.

11. The amount in controversy exceeds $75,000, exclusive of interest and costs. Plaintiff seeks, without double recovery, lost Class A Driver employment according to proof, emotional-distress damages according to proof, and the actual, additional, fee, and exemplary remedies authorized by Penal Code section 290.46(j)(4)(A). He does not rely on the statute's optional civil-penalty slice, and he does not rely on ICRAA's $10,000 statutory floor, to manufacture the jurisdictional amount. The file does not state a wage rate. Plaintiff does not invent one. He alleges in good faith that those aggregated claims exceed $75,000.

12. This Court has supplemental jurisdiction over the California claims under 28 U.S.C. section 1367(a) because they arise from the same Class A Driver application, screening, and denial as the controversy over which original jurisdiction is invoked.

13. This Court has personal jurisdiction over Swift because Swift recruited Plaintiff, a California resident; caused consumer reports to be procured about him; sent the pre-adverse and post-adverse communications to him in California; and is, on information and belief, qualified to transact business in California.

14. Venue is proper in this District under 28 U.S.C. section 1391(b)(2) because a substantial part of the events giving rise to the claims occurred in San Joaquin County, California, where Plaintiff resides, received the recruiting and screening communications, and received the adverse-action letters.

15. Under Eastern District of California Local Rule 120(d), civil actions arising in San

Joaquin County are commenced in the Sacramento Division.

PARTIES

16. Plaintiff BRENDAN NGWA NFORBI is a natural person and a citizen of California, residing in Stockton, San Joaquin County, California. He is also identified in records as Brendan Ngehsi Ngwa Nforbi and Brendan Ngehsi Ngwanforbi. Those name variants refer to Plaintiff.

17. Plaintiff is required to register under Penal Code section 290. At all times relevant, information identifying him appeared on California's Megan's Law website operated pursuant to Penal Code section 290.46.

18. Defendant SWIFT TRANSPORTATION CO. OF ARIZONA LLC is a Delaware limited liability company doing business as Swift Transportation. Its October 5, 2023 letter lists 2200 South 75th Avenue, Phoenix, Arizona 85043. On September 25, 2023, the FMCSA Clearinghouse identified the querying employer as SWIFT TRANSPORTATION CO OF ARIZONA LLC, USDOT number 54283.

19. Plaintiff will serve Swift through its designated agent for service of process on the California Secretary of State record as of the date of service. Public listings have used National Registered Agents, Inc. Plaintiff will confirm the current listing immediately before service. Service is not to be made at a terminal or a recruiter's phone number.

20. Asurint, Tenstreet, LLC, DriverIQ / Cisive, FMCSA, and Equifax Workforce Solutions / The Work Number are named in Swift's own October 5 letter as sources of consumer reports. They are inspection targets and fact witnesses, not presently named as defendants.

21. Robin Kaufman and Matt Hutto communicated as Swift driver recruiters. They are percipient witnesses, not presently named as defendants. Matt Hutto's message used a Class A Recruiting address while stating it was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC, 120 West 3rd Street, Tulsa, Oklahoma.

TIMELINESS

22. Penal Code section 290.46 does not prescribe its own limitations period. Count One is a liability created by statute, timely under Code of Civil Procedure section 338(a). Three years from September 26, 2023, is September 26, 2026. Three years from October 5, 2023, is October 5, 2026. This complaint is prepared to be filed inside both dates. Plaintiff does not plead a delayed-discovery date for this count.

23. Plaintiff does not concede that Code of Civil Procedure section 335.1 or section 340(a) supplies the period for Count One. The actual-damages and discretionary enhancement in section 290.46(j)(4)(A) are a liability created by statute, not an action upon a statute for a penalty. The labeled civil-penalty slice is pleaded in the alternative and is not the sole theory.

24. Civil Code section 1786.52 requires that an ICRAA action be brought within two years from the date the plaintiff knew or should have known of the violation. The 2023 letters described consumer reports and named agencies. They did not advise that an investigative consumer report had been obtained. The face of this complaint does not establish the discovery date as a complete bar.

25. The Unfair Competition Law claim is timely under Business and Professions Code section 17208's four-year period. That period is independent of any shorter period that may apply to a borrowed predicate.

FACTUAL ALLEGATIONS

A. The Swift Application

26. On Friday, September 22, 2023, at 3:02 p.m., Robin Kaufman, identifying herself as a Swift Transportation Driver Recruiter, emailed Plaintiff that she had received his information and asked him to complete the full application. The message was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC.

27. That evening at 10:03 p.m., Matt Hutto, also identifying himself as a Swift Driver Recruiter, emailed that he was trying to reach Plaintiff, asked him to complete the full driver application, and gave 803-564-3092 as a return number.

28. The application was for a Class A Driver position. The file does not contain the completed application, a written offer, a terminal assignment, or a rate of pay. Plaintiff does not invent those figures.

B. The September 25, 2023 Screen

29. On Monday, September 25, 2023, at 11:54 a.m., Tenstreet notified Plaintiff that a DriverIQ employment background document ordered in connection with Swift was available in Driver Pulse.

30. Four minutes later, the FMCSA Office of Safety Programs emailed that SWIFT TRANSPORTATION CO OF ARIZONA LLC (USDOT 54283) had requested access to Plaintiff's FMCSA Drug and Alcohol Clearinghouse record.

31. At 1:20 p.m. the same day, Tenstreet notified Plaintiff that his Clearinghouse result ordered by Swift was available. The decrypted pre-adverse packet includes a Clearinghouse result of Driver Not Prohibited, with no open violations.

32. The Clearinghouse query proves Swift was then treating Plaintiff as a prospective commercial-driver hire. It is not a Penal Code section 290.46 disclosure.

C. The Pre-Adverse and Post-Adverse Letters

33. On Tuesday, September 26, 2023, at 3:09 a.m., Swift Recruiting (recruitadmin@swifttrans.com) emailed a message titled 'Swift Transportation - FCRA,' stating that an important communication was attached as Pre_Adverse_Action_Letter_76326281-1916808-encrypted.pdf and that the password was the last four digits of Plaintiff's Social Security number.

34. The pre-adverse attachment has been decrypted. It is a composite screening packet. It includes completed criminal-file components returning Clear, an NSOPW component that remained Processing on every snapshot, a Clearinghouse result of Driver Not Prohibited, an MVR, PSP inspection history, and CDLIS information.

35. On Thursday, October 5, 2023, at 3:09 a.m., Swift Recruiting emailed a second 'Swift Transportation - FCRA' message attaching Post_Adverse_Action_Letter_76326281-1916809_em.pdf.

36. The enclosed letter is on Swift Transportation Co. of Arizona LLC letterhead, dated October 5, 2023, 5:09 a.m., addressed to Brendan Ngehsi Nforbi at 1455 Cat Tail Drive, Stockton, California 95204. It states that offers of employment at Swift are contingent upon successful completion of a background check, and that the letter serves as notification that

Swift had decided not to employ Plaintiff based in whole or in part on a consumer report.

37. The letter states that Asurint (Cleveland, Ohio), Tenstreet (Tulsa, Oklahoma), DriverIQ (Tulsa, Oklahoma; disputes at Cisive), FMCSA-DOT, and The Work Number / Equifax Workforce Solutions provided consumer reports which, in whole or in part, influenced the employment decision.

38. The October 5 letter says a copy of the consumer report and a Summary of Rights were attached. The decrypted September 26 packet is the report-side paper in Plaintiff's files. It does not contain a completed NSOPW result, a California Sex Offender Registry source line, or a separate later Asurint, Tenstreet, or DriverIQ printout showing a completed registry hit.

39. Civil Code section 1786.40(a) required, if an investigative consumer report had been obtained, that Swift advise Plaintiff that an investigative consumer report had been obtained and supply the agency's name and address. The October 5 letter named agencies and stated that consumer reports influenced the decision. It did not advise that an investigative consumer report had been obtained. Naming agencies is not that advice.

D. Screening Inference, Comparators, and Pretext

40. Plaintiff is a person as to whom information is disclosed on California's Megan's Law website. That website, and the statute that created it, warn that the information may not be used for employment.

41. Swift ordered an NSOPW sex-offender-website search. That component remained Processing on every snapshot in the packet sent with the pre-adverse notice. Swift then denied employment based in whole or in part on consumer reports. The completed criminal, Clearinghouse, and MVR components in the packet do not themselves explain a registry-based

denial.

42. Plaintiff alleges, on information and belief and as an ultimate fact, that between the September 26 snapshots and the October 5 decision, the in-process NSOPW component was drawing California Megan's Law website / California Department of Justice registry data concerning Plaintiff, and that Swift used that preliminary output, in whole or in part, in the October 5, 2023 denial.

43. On information and belief, the same consumer, screened in the same period for employment, returned California-registry source fields. Plaintiff does not allege that any other employer's report is Swift's report, does not allege that Asurint, Tenstreet, or DriverIQ is First Advantage, and does not attach or describe those reports as if they were Swift's report.

44. Searching a public website is not a free pass. Subdivision (j)(3)'s reference to publicly available information does not authorize employment use of Megan's Law disclosures. Information disclosed pursuant to Penal Code section 290.46 does not lose that character because a vendor also searched NSOPW or another public sex-offender compilation.

45. Alternative explanations -- a failed Clearinghouse result, a driving-record or crash disqualification, a lawful criminal-history adjudication under a statute that actually authorizes the use, a CDL defect, or a withdrawal of the application -- can be tested against a discrete set of records in Swift's and its vendors' possession.

46. If production later shows a completed NSOPW returning no record and no preliminary registry use, Count One will stand or fall on that file after production. Counts Two and Three do not depend on proving a completed registry hit.

47. The use was not to protect a person at risk within the meaning of section

290.46(j)(1). A general commercial-driver assignment is not, without more, that narrow authorization. FMCSA authorization to query the Clearinghouse or PSP is not authorization to use Megan's Law website information.

E. Harm

48. As a result of the decision, Plaintiff lost the Class A Driver opportunity, including the wages and benefits of that position, according to proof and subject to mitigation. The file does not state a wage rate. Plaintiff does not invent one.

49. He also suffered emotional distress, humiliation, and anxiety from an unexplained denial he is informed and believes rested on a status the Legislature has forbidden employers to use.

50. Plaintiff has sought replacement employment and does not claim a guaranteed lifetime expectancy from an unaccepted driver application. Economic damages will be limited to losses proven with reasonable certainty and without double recovery against other dockets that arise from different employers and different decisions.

FIRST CAUSE OF ACTION

Unauthorized Employment Use of Registry Information / Cal. Penal Code section 290.46(j)(2)(E) and (j)(4)(A) / Against Swift Transportation Co. of Arizona LLC

51. Plaintiff realleges paragraphs 1 through 50. This count is a liability created by statute. It is timely under Code of Civil Procedure section 338(a) from the September 26 / October 5, 2023 employment use. This count does not plead a delayed-discovery date.

52. Penal Code section 290.46(j)(2)(E) prohibits use of information disclosed pursuant to section 290.46 for purposes relating to employment except as authorized by paragraph (1) or another provision of law.

53. Plaintiff alleges, on information and belief and as an ultimate fact, that the in-process NSOPW component was drawing California Megan's Law website / California Department of Justice registry data concerning Plaintiff, and that Swift used that preliminary output, in whole or in part, in the Class A Driver decision. The user is the employer that takes the information into account, not a vendor that merely retrieves it.

54. Plaintiff does not allege that the printed snapshots contain a completed NSOPW hit or the words 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' The use alleged is the use of preliminary registry information from that in-process component.

55. The use related directly to employment. It was not authorized by section 290.46(j)(1) or by any other provision of law applicable to that application. It was a substantial factor in the decision and caused the loss alleged.

56. Plaintiff seeks the remedies authorized by section 290.46(j)(4)(A), including actual damages, any amount the trier of fact determines not exceeding three times actual damage and not less than $250, attorney's fees, exemplary damages, or a civil penalty not exceeding $25,000. The $25,000 figure is a cap on the civil penalty, not a substitute floor. He does not presently allege a pattern or practice sufficient for subdivision (j)(4)(B).

SECOND CAUSE OF ACTION

California Investigative Consumer Reporting Agencies Act / Cal. Civ. Code sections 1786.40 and 1786.50 / Against Swift Transportation Co. of Arizona LLC

57. Plaintiff realleges paragraphs 1 through 50.

58. On information and belief, one or more of the agencies Swift named assembled or evaluated information concerning Plaintiff's character, general reputation, personal characteristics, or mode of living for employment purposes, and Swift was the user of that information before the October 5, 2023 decision.

59. Civil Code section 1786.40(a) required Swift, when employment was denied under circumstances in which an investigative consumer report had been obtained, to advise Plaintiff of that fact and supply the investigative consumer reporting agency's name and address. Swift's October 5 letter named agencies and cities. It did not advise that an investigative consumer report had been obtained.

60. This section 1786.40 omission is pleaded as a separate act from Count One. Plaintiff does not allege that section 1786.40 required Swift to identify the decisive component or to complete the NSOPW search. This count does not plead a delayed-discovery date.

61. This count does not depend on proving Penal Code section 290.46(j). If Defendants establish that the reports were ordinary consumer reports and not investigative, this count does not apply. Plaintiff does not presently plead a CCRAA count.

62. Under Civil Code section 1786.50, Plaintiff seeks actual damages or $10,000, whichever is greater, together with costs and any attorney's fees recoverable if counsel later appears, and punitive damages if the violation is proven grossly negligent or willful.

THIRD CAUSE OF ACTION

Unlawful and Unfair Business Practices / Cal. Bus. & Prof. Code section 17200 / Against Swift Transportation Co. of Arizona LLC

63. Plaintiff realleges paragraphs 1 through 62.

64. Swift engaged in unlawful practices by violating, to the extent proven, Penal Code section 290.46(j)(2)(E) and Civil Code section 1786.40. It engaged in unfair practices because the gravity of denying employment on a criterion the Legislature has forbidden, or on consumer reports without the investigative-report advice the statute required, outweighs any utility of taking adverse action while a sex-offender-website component remained Processing.

65. Plaintiff suffered injury in fact and lost money or property through the lost Swift employment opportunity, reliance expenditures, and employment-search costs to be proven. He seeks restitution only of vested money or property Swift acquired, not unearned future wages.

66. On information and belief, Swift continues to use the same or similar standardized screening procedures for California driver applicants. Plaintiff seeks injunctive relief requiring Swift to cease prohibited employment use of California registry information in California recruiting and to preserve and disclose the source and audit trail of Plaintiff's screening, together with restitution under Business and Professions Code section 17203.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendant as follows:

A. Actual, consequential, and economic damages according to proof, without double

recovery;

B. The remedies authorized by Penal Code section 290.46(j)(4)(A);

C. ICRAA actual damages or $10,000, whichever is greater, and punitive damages upon the showing required by Civil Code section 1786.50, if that count is proven;

D. Restitution under Business and Professions Code section 17203 of vested money or property Defendant acquired, not unearned future wages, and injunctive relief;

E. Costs of suit and attorney's fees only to the extent authorized and recoverable, including if counsel later appears;

F. Prejudgment and post-judgment interest as allowed by law; and

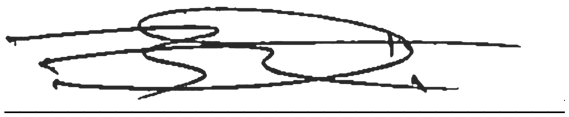
G. Such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury on all issues so triable.

Dated: September 15, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona